

Court No. - 32

Case :- WRIT - C No. - 27357 of 2018

Petitioner :- Arvind Chaudhary

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Aseem Kumar Rai

Counsel for Respondent :- C.S.C.,Pranjal Mehrotra

Hon'ble Shashi Kant Gupta,J.

Hon'ble Ajit Kumar,J.

As prayed by Sri Pranjal Mehrotra, learned counsel for the Electricity Department, three days and no more time is granted for seeking instructions in the matter.

Put up as fresh on 16.8.2018.

Order Date :- 13.8.2018

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Hon'ble Shashi Kant Gupta,J.

Hon'ble Ajit Kumar,J.

Learned counsel appearing on behalf of the Electricity Department prays for and is granted three days further time for seeking instructions in the matter.

Put up this matter as fresh on 21st August, 2018.

Order Date :- 16.8.2018

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Hon'ble Shashi Kant Gupta,J.

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This writ petition has been filed, *inter alia*, for the following reliefs:

"I. Issue a writ, order or direction in the nature of certiorari to quash the impugned notice dated 11.7.2018 issued by respondent no. 5."

Learned counsel for the petitioner submits that the impugned notice has been issued by the electricity department without following the provisions contained under the U.P. Electricity Supply Code, 2005.

Learned counsel for the petitioner after arguing the matter at length confined his prayer to the extent that the petitioner may be permitted to make a fresh objection/representation before the concerned authority in respect of his grievances with a direction to the concerned authority to decide the same within a stipulated period.

Heard learned counsel for the petitioner, Mr.

Pranjal Mehrotra, learned counsel for the electricity department and perused the record.

Considering the facts and circumstances of the case and without expressing any opinion on the merits of the case, the petitioner is directed to appear on 6.9.2018 at 11.00 A.M. before the Respondent No.5, Executive Engineer and make a fresh representation/objection before the said authority ventilating his grievances along with the certified copy of this order enclosing therewith a copy of the writ petition along with its Annexures and, if any such representation/objection is made, the said authority shall make all endeavour to consider and decide the same by a speaking order after considering the representation/objections of the petitioner in accordance with law expeditiously preferably within 15 days from the date of receipt of the said representation/objection after affording opportunity of hearing to the petitioner.

It is open for the petitioner to adduce any cogent evidence, if any, in support of his contention and take all legal pleas as permissible in law.

For a period of 45 days from today or till the disposal of the representation/objection, whichever is earlier, no coercive action shall be taken against the petitioner.

With this observation, this writ petition stands disposed of.

Order Date :- 21.8.2018

MLK